

Exhibit D Spousal Rights Clarification

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Spousal Rights Clarification

Attached to and incorporated into the Non-Judicial Settlement Agreement
dated _____, 2026

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

I. Purpose

Article 5.7 of the Flanagan Family 321 Trust Agreement provides that upon the death of a beneficiary,

The Trust Agreement does not define "heirs" in this context and does not specifically address succession.

This Exhibit clarifies the succession of beneficial interests with respect to spouses and descendants.

II. Applicability

This clarification applies to all current and future active beneficiaries of the Flanagan Family 321 Trust.

John M. Flanagan
Christopher J. Flanagan
Jennifer Yommer
Martha Foss
Joseph M Birckhead

and any future beneficiaries who may acquire an interest in the Trust.

III. Succession Upon Death of a Beneficiary

Upon the death of an active beneficiary, the following succession shall apply:

Step 1: Right of First Refusal (Article 5.7)

The deceased beneficiary's interest must first be offered to the Trust, and then to the remaining active beneficiaries, at the assessed value for municipal tax purposes, as provided in Article 5.7.

Step 2: If Not Purchased -- Spousal Inheritance

If neither the Trust nor the remaining beneficiaries elect to purchase the deceased beneficiary's interest under Article 5.7, and the deceased beneficiary has no living children or no adult children at the time of death, the surviving spouse of the deceased beneficiary shall inherit:

- a. The deceased beneficiary's entire beneficial interest in the Trust.
- b. All rights associated with that interest, including the right to use the Camp Property, the right to vote as a beneficiary, and the right to receive income distributions.
- c. All obligations associated with that interest, including the obligation to pay the proportionate share of expenses under Article 5.3.

Step 3: If Not Purchased -- Children Exist

If neither the Trust nor the remaining beneficiaries elect to purchase the deceased beneficiary's interest under Article 5.7, and the deceased beneficiary has living adult children, the interest shall pass to those children in equal shares per stirpes, consistent with the Trust Agreement's definition in Article 1.5.

Step 4: Succession from Surviving Spouse

Upon the death of a surviving spouse who inherited an interest under Step 2 above, or if that surviving spouse chooses to no longer participate in the Trust:

- a. The beneficial interest shall pass to the children (descendants) of the original beneficiary (the spouse's deceased partner), in equal shares per stirpes.
- b. If the original beneficiary had no children or descendants, the interest shall be redistributed equally among the remaining

active beneficiaries of the Trust.

- c. The right of first refusal under Article 5.7 applies before any redistribution under this Step.

IV. Spouse Defined

For purposes of this clarification, "spouse" means a person who is legally married to the be

V. Spouse's Rights and Obligations During Participation

A surviving spouse who inherits a beneficial interest shall have:

- a. The same rights as any other beneficiary, including use of the Camp Property, voting rights, and income distributions.
- b. The same obligations as any other beneficiary, including payment of proportionate expenses under Article 5.3.
- c. The right to voluntarily relinquish their interest at any time by written notice to the Co-Trustees. Upon relinquishment, the interest shall pass to the descendants of the original beneficiary or be redistributed as described in Section III, Step 4 above.

VI. No Expansion Beyond Family Line

This clarification is intended to keep beneficial interests within the Settlor's family line

- a. A surviving spouse may not transfer, assign, or sell their inherited interest to any person other than descendants of the original beneficiary, except through the right of first refusal process in Article 5.7.
- b. A surviving spouse's new spouse (through remarriage) does not acquire any beneficial interest in the Trust by virtue of the marriage.

VII. Interaction with Article VII (Restriction of Alienation)

This clarification is consistent with Article VII of the Trust Agreement, which prohibits al

VIII. Signatures

All parties to the Non-Judicial Settlement Agreement acknowledge and agree to this Spousal R

Acknowledged by Co-Trustees:

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____